



Objectives of BPS :

- I. To penalize each and every building constructed unauthorizedly or in deviation of the sanctioned plan so as to create deterrence against any such practice.
- II. To bring all the unauthorized constructions into planning fold and to regulate the development in urban areas.
- III. To provide an opportunity to the owners of the buildings to regulate their unauthorized constructions and deviations made to the sanctioned plan.
- IV. To provide relief to several persons who have purchased buildings without any knowledge about the building regulations.



SAILIENT FEATURES OF B P S :

- The Proposed regulation and penalization of unauthorized building is **ONE TIME MEASURE** only.
- These orders are applicable for the constructions made after **1-1-85 and before 31-12-14.**
- The entire life cycle of Building Penalization Scheme application and work flow is **ONLINE BASED ONE** without any involvement of manual based process.



SAILIENT FEATURES OF B P S : contd..

- As per the orders, applications can be uploaded in the online BPS URL www.bps.ap.gov.in from 27.5.2015.
- Penalization is not applicable in certain cases such as constructions contrary to the land use violations, constructions made in Government lands, constructions made in parking areas, constructions made in road widening areas, CRZ areas etc.



SAILIENT FEATURES OF B P S : contd..

- Unauthorized constructions made in unapproved layouts and unauthorized layouts also do not come under the purview of these rules.
- Huts, semi permanent houses and RCC houses up to 2 floors (G +1) in sites up to 100 sq.mts are exempted from operation of these rules.



SAILIENT FEATURES OF B P S : contd..

- The initial time given for submission of applications is 60 days and time given for disposal of applications is 6 months from the last date of receipt of applications.
- Failure to come forward for penalization of unauthorized constructions entail enforcement action including demolition and black listing of builders, developers who are responsible for constructing buildings unauthorisedly or in deviation to the sanctioned plans.



DOCUMENTS REQUIRED FOR ONLINE SUBMISSION OF BPS APPLICATION :

- Sanctioned Building Plan* (if approved earlier)
- Ownership Documents Attested*
- Constructed Building Plans(Site Plan, Detailed Plan, Floor Plan, Section Plan, Elevation Plan) (in .dwg Format) *
- Basic Value of Site Per Sq.yard *
- Latest Property tax Receipt*
- Indemnity Bond*
- One Photograph Showing Elevation *



DOCUMENTS REQUIRED FOR ONLINE SUBMISSION OF BPS APPLICATION :

- One Photograph Showing Roof Slab *
- Affidavit as Required
- Urban Land Ceiling Clearance Certificate *
- Undertaking for road Affected portion on Non Judicial Stamp Paper*
- Structural Stability Certificate *
- NOC from Fire Service Department* (if required)
- NOC from Airport Authority of India* (if required)



PENALIZATION CHARGES:

Annexure-II

Basic Penalisation charges, for individual residential buildings, other Non-Commercial uses and Commercial uses (Per Square feet in Rupees)

Plot. size	Upto 100 sq.m	101 to 300 sq.m	301 to 500 sq.m		501 to 1000 sq.m		Above 1000sq.m	
Occupancy or Use			Upto 30% deviation	above 30% deviation totally / unauthorised	Upto 30% deviation	above 30% deviation totally / unauthorised	Upto 30% deviation	above 30% deviation totally / unauthorised
1	2	3	4	5	6	7	8	9
Individual Residential Buildings and other Non-commercial uses	40	60	80	100	100	120	150	200
Commercial Use	80	120	160	200	200	250	300	400

Annexure-III

Penalization charges with reference to the land value for individual Residential buildings, other Non-Commercial uses and Commercial uses

Market value of the land as on 1.1.2015 (Sub-Registrar value) (per sq.yard in Rupees)	Penalization charges (% of basic penalization amount given in Annexure-II)
1	2
Above 25,000	100%
10,001 to 25,000	80%
5,001 to 10,000	70%
1,001 to 5,000	60%
Up to 1,000	50%



PENALIZATION CHARGES: contd..

Annexure-IV

Basic penalization charges for multiple dwelling units / flats / apartment complexes / individual building converted into apartments

Plinth area of Flat (In Sq.ft.)	Basic Penalization charges per Flat constructed in deviation to sanctioned plan	Basic Penalization charges for unauthorized floors (per sq.ft. Rupees)
1	2	3
Up to 600	Rs.20,000	120
601 to 1200	Rs.40,000	150
1201 to 2000	Rs.60,000	180
Above 2000	Rs.80,000	200

Annexure-V

Penalization charges with reference to the land value for multiple dwelling units / flats / apartment complexes / individual building converted into apartment

Market value of the land as on 1.1.2015 (Sub- Registrar value) (per sq.yard in Rupees)	Penalization charges (% of basic penalization amount given in Annexure-IV)
1	2
Above Rs.25,000	100%
Rs.15,001 - 25,000	80%
Rs.5,001 - Rs.15,000	60%
Up to Rs.5,000	50%